

**CHAPTER xxvi.**

An Act to authorise the Brixham Gas and Electricity Company to raise additional capital and for other purposes. A.D. 1938.
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[2nd June 1938.]

WHEREAS by the Brixham Gas Act 1904 the Brixham Gas Light Company (Limited) were dissolved and the shareholders of that company were incorporated as "the Brixham Gas Company" (in this Act called "the Company") and the Company were authorised to manufacture and supply gas within the urban district of Brixham in the county of Devon : 4 Edw. 7.
c. 1.

And whereas by the Brixham Gas and Electricity Act 1906 the limits of the Company for the supply of gas were extended so as to include the parish of Churston Ferrers and the Company were authorised to construct an electrical generating station and to supply electricity within their limits for the supply of gas and to raise additional capital : 6 Edw. 7.
c. li.

And whereas by the Brixham Gas and Electricity Act 1918 the Company were authorised to raise additional capital and further powers were conferred upon them : 8 & 9 Geo. 5.
c. vii.

And whereas by the Brixham Gas and Electricity Act 1930 the name of the Company was changed to that of "the Brixham Gas and Electricity Company" the area for the supply of electricity by the Company was extended so as to include a portion of the urban district 20 & 21
Geo. 5.
c. clxv.

A.D. 1938. of Paignton the Company's paid-up capital was consolidated and converted into ordinary and preference shares of one pound each and the Company were authorised to raise additional capital :

And whereas under the said Act of 1930 the authorised share capital of the Company amounts in the aggregate to eighty thousand four hundred and sixty-six pounds of which on the thirty-first day of December nineteen hundred and thirty-six the whole had been issued consisting of—

58,462 ordinary shares of £1 each entitled to a standard dividend of 5 per centum per annum ;

20,256 preference shares of £1 each bearing a fixed dividend of 5 per centum per annum ;

plus premiums amounting in the aggregate to £1,748 :

19 & 20
Geo. 5. c. 24. And whereas under the said Act of 1930 and the Gas Undertakings Act 1929 the Company are authorised to raise by borrowing on mortgage of the undertaking or by the creation and issue of debenture stock an amount not exceeding one-half of the aggregate amount of the paid-up share capital for the time being of the undertaking and of any premiums paid in respect thereof and the whole of such loan capital has been issued consisting of—

£11,584 5½ per centum mortgage debentures ;

£6,190 5½ per centum perpetual debenture stock ;

£10,000 5 per centum perpetual debenture stock ;

£12,459 4½ per centum perpetual debenture stock with premiums thereon amounting to £872 2s. 7d. :

And whereas the demand for gas and electricity supplied by the Company is considerably increasing and their expenditure on capital purposes now exceeds the total amount which has been raised by them as aforesaid such excess having been met by temporary loans :

And whereas it is expedient that the Company should be authorised to raise additional capital for the purposes of their undertaking and that the other provisions contained in this Act should be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

[1 & 2 GEO. 6.] *Brixham Gas and* [Ch. xxvi.]
Electricity Act, 1938.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

A.D. 1938.
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1.—(1) This Act may be cited as the Brixham Gas and Electricity Act 1938.

Short and
collective
titles.

(2) The Brixham Gas and Electricity Acts and Order 1904 to 1930 the Brixham Electricity (Charges) Order 1922 and this Act may be cited together as the Brixham Gas and Electricity Acts and Orders 1904 to 1938.

2. The following enactments so far as the same are applicable to the purposes and are not inconsistent with the provisions of the Brixham Gas and Electricity Acts and Orders 1904 to 1938 are hereby incorporated with and form part of this Act (namely) :—

Incorporation of
Acts.

The Companies Clauses Consolidation Act 1845 as amended by subsequent Acts (except the provisions relating to the conversion of the borrowed money into capital);

8 & 9 Vict.
c. 16.

Part I (Cancellation and surrender of shares) and Part II (Additional capital) of the Companies Clauses Act 1863 as amended by subsequent Acts;

26 & 27 Vict.
c. 118.

The Gasworks Clauses Act 1847 as amended by subsequent Acts (except the provisions thereof with respect to the amount of profit to be received by the undertakers when the gasworks are carried on for their benefit);

10 & 11 Vict.
c. 15.

The Gasworks Clauses Act 1871 as amended and extended by subsequent Acts (except section 8 thereof);

34 & 35 Vict.
c. 41.

The Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking).

A.D. 1938.

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Modification
of Companies
Clauses Act
1863 in its
application to
Company.

Interpre-
tation.

3. In the application to the Company under or by virtue of any enactment of or relating to the Company of Part III of the Companies Clauses Act 1863 section 22 of that Act shall be read as if the words “ and to the same amount as ” were omitted therefrom.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith or by the Gas Undertakings Acts 1920 to 1934 shall have the same respective meanings unless there be something in the subject or context repugnant to such construction and—

“ The Company ” means the Brixham Gas and Electricity Company;

“ The directors ” means the directors of the Company;

“ The gas undertaking ” means the gas undertaking of the Company for the time being authorised;

“ The electricity undertaking ” means the electricity undertaking of the Company for the time being authorised;

“ The undertaking ” means the gas undertaking and the electricity undertaking;

“ The limits of supply ” means the limits within which the Company are for the time being authorised to supply gas or electricity;

“ Employee ” means any workman servant or officer of the Company other than a director;

“ Consumer ” means any consumer of gas or of electricity or of both supplied by the Company within the limits of supply.

Additional
capital.

5. The Company may from time to time raise additional capital (in this Act referred to as “ the additional capital ”) not exceeding in the whole fifty-nine thousand five hundred and thirty-four pounds by the creation and issue of additional ordinary shares or stock or preference shares or stock or wholly or partially by one or more of those modes :

Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient

to produce (including any premium which may be obtained on the issue thereof and after allowing for any discount on such issue) the sum of fifty-nine thousand five hundred and thirty-four pounds. A.D. 1938.
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6. The additional capital under this Act shall form part of the general capital of the Company and save as is otherwise provided by this Act the holders thereof respectively shall be entitled to the like rights of voting (if any) and any other rights qualifications and privileges in proportion to the amount of their shares or stock and be subject to the like provisions and liabilities as the holders of other shares or stock of the Company of the same class and description existing at the passing of this Act. New shares or stock to be part of general capital.

7. Subject to the provisions of the Gas Undertakings Act 1934 and save as otherwise expressly provided by this Act all ordinary or preference shares or stock hereafter issued by the Company shall be offered for sale in accordance with the provisions of section 20 of the Brixham Gas and Electricity Act 1930. Mode of issue of new shares or stock.
 24 & 25
 Geo. 5. c. 28.

8. When any ordinary or preference shares or stock are to be issued by the Company and whether any of the shares or stock of the Company are at a premium or not the Company before or in lieu of offering the same for sale by public auction or tender may with the previous approval of the Board of Trade and subject to such conditions as the Board may think fit to impose offer such ordinary or preference shares or stock to the employees and to the consumers at not less than the average price (after due allowance made for any enhancement in price by reason of any accrued dividend) at which according to the books of the Company sales of shares or stock of the same class were effected within the period of six months immediately preceding the date of application by the Company for such approval as aforesaid. Sale of shares or stock to employees and consumers at a fixed price.

9. The following provisions of the Brixham Gas and Electricity Act 1930 shall with the necessary modifications extend and apply to the exercise of the powers of this Act as if the same were re-enacted herein (that is to say) :— Application of provisions of Act of 1930.

Section 19 (Resolutions as to votes in respect of preference shares or stock);

A.D. 1938.
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Section 23 (Priority of interest on debenture stock and mortgages);

Section 24 (Priority of mortgages and debenture stock over other debts);

Section 25 (Priority of principal moneys secured by existing mortgages);

Section 26 (Application of moneys);

Section 27 (Appointment of receiver);

Section 31 (Special provision for benefit of small investors).

Company
not bound
to regard
trusts.

10. The Company shall not be bound to see to the execution of any trusts whether express implied or constructive to which any stock or debenture stock may be subject and the provisions of section 20 of the Companies Clauses Consolidation Act 1845 shall mutatis mutandis extend and apply to any stock or debenture stock of the Company as if the same were shares in the capital of the Company.

Power to
sell and
lease lands.

11. Notwithstanding anything in the Lands Clauses Acts or any other Act to the contrary the Company may sell or otherwise dispose of or may let on lease for such periods as they think fit any lands for the time being belonging to the Company and which may not at the time be required for the purposes of the undertaking and any such sale disposal or lease may be to such person for such consideration and subject to such reservations stipulations restrictions and provisions and generally upon such terms and conditions as the Company or the directors may think fit.

Charges
for special
readings
of meters.

12. When at the request and for the convenience of any consumer the reading of any meter on any premises takes place at a time other than that of the usual periodical reading the Company may levy and recover such charges as they think fit not exceeding the sum of one shilling for each such special reading.

As to
recovery of
sums due
for fittings
&c.

13. If the Company commence proceedings against any consumer for the summary recovery of any sum due for a supply of gas or electricity or gas and electricity any other sum due or payable to the Company by the same consumer in respect of the sale of any

residual product or of the sale or hire of any apparatus or fittings supplied or provided by them for or in connection with the consumption or use of gas or electricity or in respect of the provision of materials and work in connection therewith or the fixing setting up repairing altering maintaining or removal thereof may be included in the same summons and may be recovered summarily as a civil debt together with the sum due for the supply of gas or electricity Provided that the sum so included as aforesaid do not exceed twenty pounds in any one summons. A.D. 1938.
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14. Save as otherwise expressly provided by any Act or Order from time to time relating to the Company all offences against any such Act or Order and all penalties forfeitures costs and expenses imposed or recoverable thereunder or under any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner : Recovery of penalties &c.

Provided that the costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

15.—(1) The directors may grant such gratuities pensions and superannuation allowances or make such other payments as they think fit to any employee or where in any particular case no adequate provision is in their opinion otherwise made to the widow or family or any dependant of an employee. Power to grant pensions &c.

(2) In the event of no superannuation scheme being established under the next ensuing section of this Act the directors may make such payments as they think fit to any superannuation fund otherwise formed for the benefit of the employees.

(3) The directors may enter into and carry into effect agreements with any insurance company or other association or company for securing to any such employee widow family or dependant as aforesaid such gratuities pensions allowances or payments as are by this section authorised to be granted or made.

(4) The directors may subscribe or make donations to any fund raised in case of national emergency and

A.D. 1938. — to infirmaries hospitals convalescent homes and similar institutions and to any charitable objects and to any industrial exhibitions relating to any of the objects of the Company and to the benevolent and sick funds of the employees.

(5) The directors may apply the revenues of the Company for the purposes of this section.

(6) In this section the expression "employee" includes a director appointed under the provisions of section 26 of the Gas Undertakings Act 1934 and a managing director.

Super-
annuation
scheme.

16.—(1) The Company may establish and carry into effect and from time to time modify alter or rescind a scheme for the provision of superannuation allowances for employees and may by any such scheme provide for the making of contributions by the Company and by the employees to the superannuation fund formed under any such scheme and for the investment of moneys forming part of such fund and the accumulation of interest or dividends on such investments by way of compound interest :

Provided that no person in the employ of the Company at the date of passing of this Act shall without his consent be required to contribute to any superannuation fund established under this section :

Provided also that no modification alteration or rescission of any such scheme shall without his consent place any person who at the date of such modification alteration or rescission is a contributor to the fund or entitled under such scheme to a superannuation allowance in a worse position than he would have been if such modification alteration or rescission had not been made.

(2) No employee of the Company shall be required to become a contributor to any superannuation fund established under this section until the fund shall have been registered under the Superannuation and Other
17 & 18
Geo. 5. c. 41. Trust Funds (Validation) Act 1927.

(3) The Company may apply their revenues for the purposes of this section.

[1 & 2 GEO. 6.]

*Brixham Gas and
Electricity Act, 1938.*

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17. Notwithstanding anything in the Companies A.D. 1938.
Clauses Consolidation Act 1845 it shall not be obligatory
upon the Company—

- (a) to keep separately a register of shareholders and a shareholders' address book but in lieu thereof the Company may if they think fit keep one register only containing such particulars as are required by the said Act to be entered in the register of shareholders and the shareholders' address book respectively; or
- (b) to authenticate by affixing of their common seal or otherwise the register of shareholders or any register which the Company may keep in lieu thereof under the powers of this section.

Register of
share-
holders and
share-
holders'
address
book.

18. Section 54 (Sale or lease of lands not required) of the Brixham Gas Act 1904 is hereby repealed. Repeal.

19. All the costs charges and expenses of and incidental to the preparation for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue. Costs of Act.

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FOR

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Acts of Parliament

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*Brixham Gas and
Electricity Act, 1938.*

[1 & 2 GEO. 6.]

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